

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
August 27, 2026

#	Case Name	Tentative
1.	30-2024-01446495-CU-FR-NJC WVJP 2021-4, LP vs. Tucciarone	Before the Court is a Motion to Compel Further Responses to Special Interrogatories, Set Two, and Sanctions (“Motion”) brought by Plaintiff WVJP 2021-4, LP (“Plaintiff”) against Defendant Joseph Tucciarone (“Defendant”). ROA 173. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2030.300(d) and 2023.010, compelling Defendant to serve further, verified, code compliant responses to Plaintiff’s Special Interrogatories (“SROG”), Set Two, Numbers 2-9, and imposing monetary discovery sanctions upon Defendant and Defendant’s attorneys of record, Goe & Forsythe, LLP, joint and severally, in the amount of \$2,962.50, for the costs borne by Plaintiff in bringing this motion. ROA 173, p.2; ROA 171, p.1.

	I. Relevant Timeline of Events On October 16, 2025, the parties executed a Stipulated Protective Order governing the exchange of confidential information and documents. ROA 173, p.17. The Order was filed with the Court on October 22, 2025. ROA 119. On February 6, 2026, Plaintiff propounded SROG, Set Two, upon Defendant. ROA 173, p.17. On April 3, 2026, Defendant served responses to Plaintiff's SROG, Set Two. ROA 173, p.17. On April 17, 2026, Defendant served supplemental responses to Plaintiff's SROG, Set Two, Numbers 2-9. ROA 173, p.18. On May 19, 2026, Plaintiff emailed Defendant in an attempt to resolve allegedly noncompliant responses to Plaintiff's SROG, Set Two. ROA 173, p.18. On June 3, 2026, after significant meet and confer efforts, Plaintiff served the Motion upon Defendant by mail and email. ROA 173, p.31. On June 16, 2026, the Court ordered the parties to attend an Informal Discovery Conference ("IDC"), facilitated by the Court, on July 20, 2026. ROA 185. On July 20, 2026, the parties attended the IDC as ordered but were unable to resolve their dispute regarding Plaintiff's SROG, Set Two, Numbers 2-9. ROA 210. On July 23, 2026, Defendant served Third Supplemental Responses to Plaintiff's SROG, Set Two, Numbers 2-9. ROA 216, p.76. The Court notes here that Defendant's Supplemental and Third Supplemental Responses will be treated separately on the basis that any supplemental responses submitted after service of Plaintiff's motion, if deemed code compliant, will not relieve Defendant from liability for sanctions for untimely compliance. <i>See</i> Cal. Rules of Court Rule 3.1348
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("[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed."); *see also Deck v. Developers Inv. Co., Inc.*, 89 Cal. App. 5th 808, 831 (2023) ("[u]ntimely compliance is not compliance.").

II. Code Compliant Responses to Special Interrogatories

A party's response to interrogatories must consist of either: (i) an answer, (ii) an objection, or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a).

The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. *Deyo v. Kilbourne*, 84 Cal. App. 3d 771, 783 (1978).

Answers must be fully responsive and may not reference other documents in lieu of a response. *Deyo, supra*, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading'"). If a response requires reference to another document, the document should be summarized and included in a comprehensive response. *Id.*

Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete answer, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); *see Regency Health Services, Inc. v. Super. Ct.*, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption on the basis of incompetency from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests).

This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer,

	agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Castaline v. City of L.A.</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that “[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete answer after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, answers must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating “[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories.”). If an interrogatory requires an abstract, an audit, or a summary of information contained in records under the responding party’s control, the responding party may elect to permit the inspection and copying of the records in lieu of an answer, as long as the burden and expense of doing so would be substantially the same for both parties. Cal. Civ. Proc. Code 2030.230. Electing this option is tantamount to confirming that the required records exist and contain the information necessary to answer the interrogatory. <i>Deyo, supra</i>, 84 Cal. App. 3d at 784 (<i>citing Kaiser Found. Hospitals v. Super. Ct. for Los Angeles Cnty</i>, 275 Cal. App. 2d 801, 805 (1969). Objections must be stated individually, must specifically reference the interrogatory to which it is directed, and must clearly set forth the specific ground for the objection. Cal. Civ. Proc. Code §§ 2030.210(c), 2030.240(b). Blanket objections to an entire set of interrogatories and “boilerplate” objections, although sanctionable, are considered sufficient to preserve only objections raised on the grounds of attorney client or work product privileges, and only if they are timely served. <i>Korea Data Systems Co. v. Super. Ct.</i>, 51 Cal. App. 4th 1513, 1516 (1997).
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The responding party bears the burden of substantiating its objections to interrogatories. *Coy v. Super. Ct. of Contra Costa Cnty*, 58 Cal. 2d 210, 220 (1962). When objecting to interrogatories, responding parties must show “facts from which the trial court might find that the interrogatories were interposed for improper purposes.” *Id.*

“The objection of [undue] burden is valid only when that burden is *demonstrated* to result in injustice. *West Pico Furniture Co. v. Super. Ct.*, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” *Mead Reinsurance Co. v. Super. Ct.*, 188 Cal. App. 3d 313, 321 (1986) (quoting *West Pico, supra*, 56 Cal. 2d at 417).

Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook Civ. Proc. Discovery § 5.5. For interrogatories, “[w]hen a question is somewhat ambiguous, but ‘the nature of the information sought is apparent,’ the question must be answered.” *Id.* (citing *Deyo, supra*, 84 Cal. App. 3d at 783). If a court determines that a request for admission or interrogatory is “too ambiguous to allow intelligent reply” it may either sustain the objection or order the question rephrased. *Cembrook v. Super. Ct In and For City and Cnty of S.F.*, 56 Cal. 2d 423, 430 (1961).

To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” *Pacific Tel. & Tel. Co. v. Super. Ct.*, 2 Cal. 3d 161, 173 (1970).

“For discovery purposes, information is relevant if it might reasonably assist a party in *evaluating* the case, *preparing* for trial, or *facilitating* settlement.” *Gonzalez v. Super. Ct.*, 33

	Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.). “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” <i>Lopez v. Watchtower Bible and Tract Soc’y of N.Y., Inc.</i>, 246 Cal. App. 4th 566, 591 (2016). “[D]oubts as to relevance should generally be resolved in favor of permitting discovery.” <i>Pacific Tel., supra</i>, 2 Cal. App. 3d at 173. An objection on the grounds that a specially prepared interrogatory is compound, conjunctive, or disjunctive is sustained where more than a single subject is covered by the question. <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1291 (2000) (“[q]uestions regarding the same subject should be allowed although they include an ‘and’ or ‘or.’”). The purpose of California Code of Civil Procedure Section 2030.060(f) is to “prevent questions worded so as to require more information that could be obtained by 35 separate questions.” <i>Id.</i> (quoting Weil & Brown, Cal. Prac. Guide: Civil Proc. Before Trial, ¶ 8:978.1, p. 8F-21 (The Rutter Group 2009)). The attorney client privilege is “absolute and prevents disclosure of the communication [between a client and attorney] regardless of its relevance, necessity or other circumstances peculiar to the case.” <i>Kerner v. Super. Ct.</i>, 206 Cal. App. 4th 84, 111 (2012) (citing <i>Costco Wholesale Corp. v. Super. Ct.</i>, 47 Cal.4th 725, 733, 101 (2009)). A communication between a client and their attorney is not privileged “unless the client intends that it be treated in confidence.” <i>D.I. Chadbourne, Inc. v. Super. Ct. of City and Cnty of S.F.</i>, 60 Cal. 2d 723, 732 (1964) (citations omitted); see Cal. Evid. Code § 952 (defining confidential communication as that “information transmitted between a client and [their] lawyer in the course of that relationship and in confidence by a means which, so far as the client is aware, discloses the information to no third persons other than those who are present to further the interest of the client . . .”). The privilege only extends to requests which call for, rather than refer to confidential communications between attorney
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		and client. <i>Coy, supra</i>, 58 Cal. 2d at 219 (finding that a question seeking to elicit the date on which a party made a confidential communication with their attorney, rather than the substance of the communication, did not fall within the purview of the attorney client privilege.) The party asserting the privilege bears the initial burden of presenting facts necessary to support a finding that the communication was “made in the course of an attorney-client relationship.” <i>Costco, supra</i>, 47 Cal. 4th at 733 (citations omitted). The burden then shifts to the propounding party to establish that either “the communication was not confidential or that the privilege does not for other reasons apply[.]” <i>e.g.</i>, that the privilege was waived. <i>Id.</i> (citations omitted). The Supreme Court of California has recognized that “the right of privacy extends to one’s confidential financial affairs.” <i>Valley Bank of Nevada v. Super. Ct.</i>, 15 Cal. 3d 652, 656 (1975). However, an important caveat to <i>Valley Bank</i> is that it more accurately stands for the proposition that a person has a reasonable expectation that a <i>financial institution</i> with whom a party shares a confidential relationship will not divulge that person’s confidential information absent <i>compulsion by legal process</i>. <i>Id.</i> at 657; <i>Garrabrants v. Erhart</i>, 98 Cal. App. 5th 486, 499 (2023). Thus, a person does not have a reasonable expectation of privacy in their financial affairs in all circumstances. <i>Garrabrants, supra</i>, 98 Cal. App. 5th at 500. Discovery of confidential financial information is permitted if the information is relevant to the subject matter at issue. <i>Dompeling v. Super. Ct.</i>, 117 Cal. App. 3d 798, 808. Courts consider the following factors when an objection is made to the discovery of sensitive financial information: (i) the purpose for which the information is sought; (ii) the potential ramifications of disclosure on the parties and on trial; (iii) the nature of the opposing party’s objections; (iv) whether the court can issue an order that promotes partial disclosure, another form of disclosure, or can fashion certain safeguards that permit disclosure only after the requesting party has met certain criteria that are just under
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	the circumstances. <i>Greyhound Corp. v. Super. Ct.</i>, 56 Cal 2d 355, 382-83. A discovery request may be deemed overly broad if it results in an undue burden, seeks irrelevant information, or presents a serious intrusion into protected privacy interests. Cal. Judges Benchbook Civ. Proc. Discovery § 5.5; <i>Lopez, supra</i>, 246 Cal. App. 4th at 578-79 (2016) (rejecting a responding party's overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." Cal. Civ. Proc. Code § 2017.020. a. Defendant's Supplemental Responses to Plaintiff's SROG, Set Two, Nos. 1-9 As a threshold matter, the Court will address Defendant's objections to Plaintiff's SROG, Set Two, Number 1, as any further response that may be required to Number 2 is dependent upon a finding that Defendant's objections to Number 1 are overruled. <i>See</i> ROA 216, p.35. Here, Defendant's Supplemental responses to Plaintiff's SROG, Set One, Numbers 1-9, offer boilerplate objections on the grounds that the interrogatories are compound, vague and ambiguous, present an undue burden, are overbroad, implicate the attorney-client privilege, and seek irrelevant information. ROA 171. Other objections raised, including Defendant's reference to objections raised in Defendant's preliminary statement, are not considered on the grounds that they are either not valid objections to interrogatories or fail to specifically reference the interrogatory to which they are raised. The Court finds that none of Plaintiff's SROGs at issue are impermissibly compound. Accordingly, all of Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds they are compound, are OVERRULED.
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	The Court finds that none of Plaintiff's SROGs at issue are so unintelligible as to preclude an intelligent reply. Accordingly, all of Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of ambiguity, are OVERRULED. The Court finds that Defendant's Supplemental Responses fail to provide sufficient facts showing the trouble and expense entailed in responding to Plaintiff's SROGs at issue, or that doing so would present a burden incommensurate with the result sought. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of undue burden are OVERRULED. The Court also finds that Defendant's Supplemental Responses fail to show how Plaintiff's SROGs at issue cannot reasonably lead to the discovery of admissible evidence. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9 on the grounds of irrelevance are OVERRULED. In addition to the foregoing, the Court finds that Defendant's Supplemental Responses also fail to show how Plaintiff's SROGs at issue present a serious intrusion into a protected privacy interest of Defendant. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of overbreadth, are OVERRULED. Furthermore, the Court finds that none of Plaintiff's SROGs at issue explicitly call for the disclosure of confidential communications between Defendant and Defendant's attorney. Additionally, the Court finds that Defendant's Supplemental Responses fail to demonstrate how Plaintiff's SROGs implicate communications between Defendant and Defendant's attorney that Defendant intended to remain confidential, or that the SROGs seek communications made in the course of the attorney-client relationship between Defendant and Defendant's attorney. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of attorney-client privilege
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	are OVERRULED. Finally, the Court finds that Defendant's Supplemental Responses to Plaintiff's SROGs at issue provide evasive answers that are not code compliant. ROA 171. Defendant neither leverages sources within their employ that could provide the requested information, nor details the efforts made to obtain the information despite Defendant's lapse in memory. Pursuant to the foregoing, the Court finds that <i>none</i> of Defendant's Supplemental Responses to Plaintiff's SROG, Set Two, Nos. 1-9, are code compliant. b. Defendant's Third Supplemental Responses to Plaintiff's SROG, Set Two, Nos. 1-9 In addition to incorporating the objections from Defendant's Supplemental Responses, all of which are OVERRULED, Defendant's Third Supplemental Responses object to Plaintiff's SROG, Set Two, Numbers 1-9 on the grounds that the inquiries implicate Defendants' protected privacy interest in Defendant's confidential financial information. ROA 216, Exh. D. The Court finds that the parties' Stipulated Protective Order (ROA 119) is sufficient to assuage any concerns regarding the disclosure of Defendant's confidential financial information. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 2-9 are also OVERRULED. Additionally, the Court finds that Defendant's Third Supplemental Responses also provide evasive answers that do not answer the questions posed and present additional information not relevant to Plaintiff's inquiries. ROA 216, Exh. D. Hence, none of Defendant's Third Supplemental Responses cures the deficiencies in Defendant's Supplemental Responses and are therefore <i>also</i> not code compliant. Accordingly, Plaintiff is entitled to further, verified, code compliant responses to Plaintiff's SROG, Set Two, Numbers 2-9, without objections.
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III. Sanctions re: Motions to Compel Further Responses to Discovery

‘Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” *Ellis v. Toshiba Am. Info. Sys. Inc.*, 218 Cal. App. 4th 853, 878 (2013) (quoting *Clement, supra*, 177 Cal. App. 4th at 1286-1287).

Courts must impose monetary sanctions against any party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demands for production, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h).

The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” *Doe v. U.S. Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434 (2011).

Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant’s failure to provide code compliant responses to Plaintiff’s SROG, Set Two, Numbers 2-9. Additionally, the Court finds no reason why the imposition of monetary discovery sanctions upon Defendant would result in prejudice to Plaintiff. Thus, sanctions are mandatory and just.

IV. Assigning Liability for Sanctions

California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts *shall* impose monetary sanctions absent

	a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney’s declarations show attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261 (1993). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. See generally
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Cornerstone, supra, 56 Cal. App. 5th at 799.

Here, the parties do not argue, and the Court does not find, that Defendant's failure to serve code compliant responses to Plaintiff's SROG, Set Two, Numbers 1-9 is attributable to client misconduct. Accordingly, the Court assigns liability for the sanctions imposed for discovery misuse upon Defendant's counsel only.

V. Determining a Reasonable Sanctions Amount

Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. *See Cornerstone, supra*, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness).

"The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." *Cornerstone, supra*, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. *Id.*, (citing *Parker v. Wolters Kluwer U.S., Inc.*, 149 Cal. App. 4th 285, 294 (2007)).

"After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions." *In re Marriage of Moore*, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added).

Having considered the above principles in light of Plaintiff's declaration addressing the costs incurred in bringing this Motion, the Court finds that Plaintiff is entitled to a monetary discovery sanctions award of \$2,962.50.

Accordingly, Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two, and Sanctions (ROA 173) is **GRANTED**.

		Defendant is ORDERED to serve further, verified, code compliant responses to Plaintiff's Special Interrogatories, Set Two, Numbers 2-9, without objections, no later than September 10, 2026. Moreover, the Court IMPOSES monetary discovery sanctions upon Defendant's counsel, Goe & Forsythe, LLP, in the total collective amount of \$2,962.50, due and payable to Versus Law Group, APC, no later than thirty (30) days after receipt of notice of this Order. Plaintiff shall give notice.
2.	30-2021-01198262-CU-BC-WJC CA-MRE Holdings, LLC vs. Sierra Creek, LLC	Before the Court is a Motion to Quash ("Motion") plaintiff CA-MRE Holdings, LLC's ("Plaintiff") Deposition Subpoena for the Production of Business Records brought by defendant Russel Singer ("Defendant") and nonparty Adobe Oil Development Corporation ("Adobe") (collectively, "Movants"). ROA 291. Movants seek an order, pursuant to California Code of Civil Procedure Section 1987.1, quashing Plaintiff's Deposition Subpoena for the Production of Business Records dated June 19, 2026, and noticed for production on July 15, 2026 (the "Adobe Subpoena"), in its entirety, or in the alternative, modifying it and issuing a protective Order. ROA 291. Movants additionally seek an order, pursuant to California Code of Civil Procedure Section 1987.2, imposing monetary sanctions upon Plaintiff for Movants' reasonable expenses, including attorney's fees. ROA 370, pp. 8, 9. Plaintiff requests that the Court deny Movants' motion and seeks an order compelling compliance with the Adobe Subpoena within three (3) days, or prior to the scheduled trial on August 31, 2026. ROA 352 p.15. I. Notice of Motion Requirements Authorization of relief directing compliance with a subpoena, "upon motion reasonably made" invokes the notice and hearing requirements generally applicable to

motions. *See* Cal. Civ. Proc. Code § 1987.1. In *Gonzales v. Superior Court*, the court held that only grounds specified in a motion may be considered and that a separate form of affirmative relief could not be granted without notice that such relief was being sought. *Gonzales v. Super. Ct.*, 189 Cal. App. 3d 1542, 1545–1546 (1987). *See* Cal. Civ. Proc. Code §§ 1003 (defining a motion), 1005 (notice requirements for certain motions); *see also* *Cuff v. Grossmont Union High School*, 221 Cal. App. 4th 582, 596 (2013) (a party must make its own affirmative motion in order to seek “the opposite relief”).

The Court notes that Plaintiff’s request, seeking an order compelling compliance with the Adobe Subpoena, brought before the court in Plaintiff’s opposition to Movants’ Motion, is procedurally improper and the Court therefore declines to consider the relief sought. *See generally* ROA 352 (Plaintiff’s Opposition to Movants’ Motion).

II. Motions to Quash

A motion to quash seeks to modify a subpoena or nullify it in its entirety because it is defective or seeks impermissible information. A motion to quash provides the trial court with the opportunity to determine the validity of a subpoena and whether the information sought should be produced. *In re R.R.*, 187 Cal. App. 4th 1264, 1277 (2010). Specifically, California Code of Civil Procedure Section 1987.1 provides:

[w]hen a subpoena requires the attendance of a witness or the production of . . . documents . . . the court, upon motion reasonably made by . . . [a party or a witness], or upon the court’s own motion . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.

Cal. Civ. Proc. Code § 1987.1.

Additionally, “the court may make any other orders as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of

	the right of privacy of the person.” <i>Id.</i> Typically, a motion to quash is filed before the time of production, but the court has the authority to consider the motion even after the date of production. <i>In re R.R., supra</i>, 187 Cal. App. 4th at 1278. If granted, the subpoena will be unenforceable because “quashing the subpoena” will make it void. <i>See Quash</i>, Merriam-Webster Law Dictionary (last updated August 4, 2026). Rule 3.1345 of the California Rules of Court requires motions to compel or to quash production of documents at a deposition to be accompanied by a separate statement when involving the <i>content</i> of a discovery request or the responses. Cal. Rules of Ct., r. 3.1345(a). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See generally Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008) (the court denied a motion to compel when plaintiff’s separate statement fell short of the requirements under the California Rules of Court). “A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue.” Cal. Rules of Ct., r. 3.1345. The separate statement must include the following: (i) the text of the request; (ii) the text of the response and any supplemental responses; (iii) a statement of the factual and legal reasons for compelling further responses; and (iv) any other information required to understand the request such as definitions, instructions, and summaries of relevant documents. <i>Id.</i> The separate statement forces moving parties to make pointed arguments and to specify which arguments and objections apply to which specific request for production. Absent this level of detail provided by moving parties, the Court is left to cobble together a clear and cogent argument, piecemeal. The Court is not inclined to adopt this duty on behalf of moving parties. Here, Movants’ Motion challenged the contents of
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Plaintiff's discovery request. *See generally* ROA 291. Consequently, Movants' Motion, under California Rules of Court rule 3.1345, is required to be accompanied by a separate statement. Cal. Rules of Ct., r. 3.1345. The Court finds that Movants' Motion lacked the required separate statement under California Rules of Court rule 3.1345.

Accordingly, Movants' Motion is procedurally invalid and is therefore **DENIED** on that basis.

III. Motions for Protective Order

A protective order does not seek to nullify the subpoena; rather, it permits production of discovery but limits disclosure and use of discovered information. *Nativi v. Deutsche Bank Nat'l Tr. Co.*, 223 Cal. App. 4th 261, 318 (2014).

Unlike a Motion to Quash under California Code of Civil Procedure Section 1987.1, a Motion for Protective Order under Section 2025.420 must be accompanied by a meet and confer declaration that complies with the provisions of Section 2016.040. Cal. Civ. Proc. Code § 2025.420(a).

Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a).

Additionally, the moving party's declaration "shall include whether the moving party met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b).

Here, the Court finds that Movants' Declaration in Support of their Motion fails to satisfy the meet and confer requirements of California Code of Civil Procedure Section 2016.040 required under California Code of Civil Procedure 2025.420 when seeking a Protective Order. ROA 291, pp. 15-17.

Accordingly, Movants' Motion for a Protective Order is also procedurally invalid and therefore **DENIED**.

IV. Discretionary Sanctions for Misuse of the Discovery Process

"California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to 'misuse of the discovery process.'" *Doppes v. Bentley Motors, Inc.*, 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2030.290(c), 2031.300(c).

"In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion . . . if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." Cal. Civ. Proc. Code § 1987.2(a).

The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." *Doe v. United States Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434 (2011).

Additionally, "the court shall impose that sanction [authorized by any provision of this title] unless it finds . . . that the other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2023.030(a).

Sanctions "should not provide a windfall to the opposing party or place them in a better position than if the discovery had been properly conducted." *Victor Valley Union High School Dist. v. Super. Ct.*, 91 Cal. App. 5th 1121, 1159 (quoting *Kwan Software Eng'g, Inc., v. Hennings*, 58 Cal. App. 5th 57, 59).

To avoid sanctions, an unsuccessful opponent to a motion to compel may show "substantial justification" for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was

	justified. <i>Pollock v. Super. Court</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); see also Cal. Civ. Proc. Code § 2030.090(d) (availability of monetary sanctions when making or opposing a motion for a protective order). A Court “must make an explicit finding this [substantial justification] exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer United States, Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, as outlined above, Movants did not include a separate statement accompanying their Motion to Quash as required by California Rules of Court. See generally ROA 291. Furthermore, Movants’ Declaration fails to satisfy the meet and confer requirements under California Code of Civil Procedure Section 2016.040 required when seeking a Protective Order. ROA 291, pp. 15-17. Accordingly, the Court finds that monetary sanctions are appropriate to prevent further misuse. V. Assigning Liability for Monetary Discovery Sanctions California Code of Civil Procedure Section 1987.2 permits a court to impose monetary sanctions on a party if the court finds that a motion was made or opposed in bad faith or without substantial justification. Cal. Civ. Proc. Code § 1987.2(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing
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	to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 261 (1993) (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013); <i>see Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (the court found the trial court did not err by declining to make counsel jointly and severally liable for the monetary sanctions). Here, the Court finds that Defendant's failure to accompany the herein Motion with a separate statement required under California Rules of Court rule 3.1345, and Defendant's failure to satisfy the meet and confer requirements for a motion brought under California Code of Civil Procedure Section 2025.420, Motion for Protective Order, is not attributable to client misconduct. Instead, the Court finds that the misuse of the discovery process is attributable to Movants' counsel. However, Plaintiff does not seek sanctions. As Movants' counsel is not on notice of the potential imposition of monetary sanction, to impose sanctions at this time would violate due process. Accordingly, the Court finds that the imposition of sanctions would result in injustice. The Court exercises its discretion not to impose sanctions. Movants' Motion to Quash Deposition Subpoena for the Production of Business Records (ROA 291) is DENIED.
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		Plaintiff to give notice.
3.	30-2024-01423858-CU-WM-CJC S. vs. Regents of the University Of California	Before the Court are two (2) Motions to Compel Further Production of Documents (“Motions”), brought by plaintiff Z.S. (“Plaintiff”), against defendants Regents of the University of California (“Regents”) and Howard Gillman (“Gillman”) (collectively, “Defendants”). ROA 178. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2031.240 and 2031.310, compelling Defendants to serve further documents responsive to Requests for Production, Set One, Nos. 11-73 and 76-88, and to produce a privilege log substantiating Defendants’ objections on privilege grounds. ROA 178, pp. 5, 10. Defendants request that the Court deny Plaintiff’s Motions in their entirety. ROA 205, p.14. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Demands California Code of Civil Procedure Section 2031.310 allows the requesting party to move for an order compelling further response to a [production] demand if, among other things, the demanding party deems that “[a] statement of compliance . . . is incomplete[,] [a] representation of inability to comply is inadequate, incomplete, or evasive[,] or [a]n objection in the response is without merit or too general.” Cal. Civ. Proc. Code § 2031.310(a). The motion must be accompanied by a meet and confer declaration and must set forth specific facts showing good cause justifying the discovery demand. Cal. Civ. Proc Code § 2031.310(b). Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith

		attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). Here, Plaintiff served the herein Motions upon Defendants on June 1, 2026, by email. ROA 174. Therefore, the Motion is subject to the updated meet and confer requirements of California Code of Civil Procedure Section 2016.040(b). The Court finds that Plaintiff’s Declaration, in Support of Plaintiff’s Motions, lacks an attestation that the parties met and conferred regarding the retention of a certified court reporter to report the hearing on the Motions. <i>See generally</i> ROA 176. Consequently, Plaintiff’s Motions are procedurally invalid and are therefore DENIED. Sanctions re: Motions to Compel Further Responses to Discovery ‘Whenever one party’s improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court’s intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287). Courts must impose monetary sanctions against any party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demands for production, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal.
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		App. 4th 1424, 1434 (2011). Here, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff's failure to satisfy the clear requirements of California Code of Civil Procedure Section 2016.040 in making this motion. However, neither Plaintiff nor Defendants seek sanctions in this matter. As neither party is on notice of the potential imposition of monetary sanctions, to impose sanctions at this juncture would violate due process. Accordingly, the Court finds that the imposition of sanctions would result in injustice. The Court exercises its discretion not to impose sanctions. Accordingly, Plaintiff's Motion to Compel Further Responses to Requests for Production (ROA 178) is DENIED. Defendant to give notice.
4.	30-2025-01502640-CU-BT-CJC Flexpoint, Inc. vs. Felix	Before the Court are a Motion for Reconsideration brought by movant Brenda Felix ("Movant") ROA 215. Additionally, an Ex-Parte Application is brought by the Movant and nonparty MFOX Law Group, Inc. (collectively "Defendants") ROA 224. Movant requests an order, pursuant to California Code of Civil Procedure Sections 1008 and 473, vacating or modifying its July 8, 2026, Order (ROA 205) granting plaintiff and cross defendant Flexpoint Inc.'s Motions to Compel Further Responses to Requests for Production ("MF-PROD"), Special Interrogatories ("MF-SROG"), and Form Interrogatories ("MF-FROG") (collectively "Motions"), and imposing monetary discovery sanctions upon Movant in the amount of \$6,000. ROA 215. Additionally, "Defendants" seeks an order, pursuant to California Code of Civil Procedure Section 918, temporarily staying enforcement of the Court's Order (<i>see supra</i>) pending the Court's determination of Movant's Motion for Reconsideration, or granting other relief as the Court deems just and appropriate. (ROA 215). ROA 224, p.2.

	The Court's Order renders Defendants' Ex Parte Application moot. <i>See infra</i>. Motions for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a court's order "may, within 10 days after service upon the party of written notice of entry of the order," move the court to reconsider, modify, or revoke the court's prior order. Cal. Civ. Proc. Code § 1008(a). The moving party's application must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown." <i>Id</i>. Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were not known or available at the time of the original application. <i>See Garcia v. Hejmadi</i>, 58 Cal. App. 4th 674, 690 (1997). Courts will not consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the original application in controversy. <i>See Id.</i> (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier). Here, Plaintiff served MF-PROD upon Movant on April 15, 2026, by email. ROA 144. On April 16, 2026, the Court ordered the parties to attend an Informal Discovery Conference ("IDC") scheduled for May 20, 2026, facilitated by the Court, in order to resolve any pending discovery disputes. ROA 151. On April 21, 2026, Plaintiff served Movant with MF-SROG and MF-FROG by email. ROAs 161, 165. On May 19, 2026, the Court continued the IDC <i>and all Motions</i> to July 8, 2026. ROA 190.
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	On July 8, 2026, the Court noted Movant's counsel's failure to appear for IDC as ordered. ROA 205. Consequently, the Court granted Plaintiff's Motions by default and imposed monetary discovery sanctions upon Movant in the amount of \$6,000. Additionally, the Court ordered Movant to serve further, verified responses to Plaintiff's discovery demands, without objections, by July 22, 2026. <i>Id.</i> Movant now argues, pursuant to California Code of Civil Procedure Section 1008, that Movant's supplemental responses, which Movant served upon Plaintiff on July 7, 2026, <i>one (1) day</i> prior to the scheduled IDC and hearing, represent new facts, circumstances, or law that justifies reconsideration under Section 1008. ROA 219, pp. 2-3; <i>see also</i> ROA 219, Exhs. 5-7. The Court is not convinced. The Court's ruling was reached as a result of Movant's failure to oppose the Motions at hearing, not on the merits of the discovery requests or responses. Movant's argument for reconsideration under Section 1008 is, therefore, misplaced. Accordingly, Movant's Motion for Reconsideration is DENIED. Relief from Judgment California Code of Civil Procedure Section 473 provides "the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Cal. Civ. Proc. Code § 473(b). The statute further requires that an application for relief "be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." <i>Id.</i> Application for this relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." <i>Id.</i> California Code of Civil Procedure Section 473 is not
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	limited to relief from default judgments or mistakes in pleadings. Although the statute appears in the chapter addressing "Mistakes in Pleadings and Amendments," by its plain language, the statute authorizes a court to relieve a party from a "judgment, dismissal, <i>order</i>, or <i>other proceeding</i>" taken against that party" Cal. Civ. Proc. Code § 473(b) (emphasis added); <i>see also Zellerino v. Brown</i>, 235 Cal. App. 3d 1097, 1106 (1991) (finding that discovery motions are "proceedings" under the meaning of Section 473 and that parties may seek relief under Section 473 from courts' orders issued in discovery proceedings where the relief sought is not provided in the applicable section of the discovery act). California courts have consistently recognized the distinction between the discretionary and mandatory provisions of Section 473(b). <i>See Minick v. City of Petaluma</i> ("<i>Minick</i>"), 3 Cal. App. 5th 15, 25 (2016). The discretionary provision applies broadly to "any judgment, dismissal, order, or other proceeding," whereas the mandatory attorney-fault provision is limited to defaults, default judgments, and dismissals. <i>Id.</i> As the court explained in <i>Minick</i>, the Legislature intentionally limited mandatory relief while preserving broad discretionary authority to set aside judgments, orders, and other proceedings entered through mistake, inadvertence, surprise, or excusable neglect. <i>Minick, supra</i>, 3 Cal. App. 5th at p. 26. However, while relief under the discretionary provision is available only where <i>excusable</i> neglect is found, the mandatory provision is appropriate even in cases of <i>inexcusable</i> neglect. <i>See Rodriguez v. WNT, Inc.</i>, 116 Cal. App. 5th 791, 803 (2025). The mandatory provision has been applied in the discovery context where the resulting order falls within the statute's limited scope. <i>See Aldrich v. San Fernando Valley Lumber Co.</i>, 170 Cal. App. 3d 725, 736 (1985) ("an order for dismissal entered for failure to comply with an order compelling answers to interrogatories is the practical equivalent of a default judgment.").
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Applying this principle, the Court in *Rodriguez* held that a dismissal entered as a terminating discovery sanction qualified for mandatory relief under Section 473(b), provided the statutory requirements were satisfied, including the submission of verified discovery responses. *Rodriguez, supra*, 234 Cal. App. 4th at 729 ("when relief is sought from a terminating sanction imposed for failing to provide discovery responses, the application must be accompanied by verified responses to the discovery in question."). Likewise, in *Matera v. McLeod*, the court held that a default judgment entered after an answer was struck as a discovery sanction constituted a default judgment eligible for mandatory relief based on an attorney affidavit of fault. *Matera v. McLeod* 145 Cal. App. 4th 44, 67 (2006).

Discretionary relief under Section 473 is not unlimited, however. Courts have declined to grant discretionary relief where the discovery violations resulted from a party's deliberate or willful misconduct rather than excusable neglect. *See Rodriguez, supra*, 116 Cal. App. 5th at 803.

Likewise, mandatory relief is unavailable where both the attorney and the client share responsibility for the misconduct that resulted in the default or dismissal. *Id.*; *Lang v. Hochman* 77 Cal. App. 4th 1225, 1248 (2000) ("where the parties to a lawsuit have contributed to a default or dismissal, they are not entitled to relief pursuant to subsection (b) of section 473.").

Accordingly, in this Court's reading, Section 473(b) is not confined to defaults or pleading errors. Its discretionary provision authorizes relief from discovery orders and other discovery-related proceedings when the statutory requirements are met, and no express provision in the relevant section of the discovery act provides for the relief sought, while its mandatory, attorney-fault provision remains limited to defaults, default judgments, dismissals and, in the discovery context, orders imposing terminating sanctions.

As a threshold matter, and pursuant to the foregoing, because the Order of the Court from which Movant seeks

		relief did not result in terminating sanctions (ROA 205), the Court finds that Movant is not entitled to mandatory relief. The party seeking discretionary relief under Section 473 must demonstrate that the mistake, inadvertence, or general neglect was excusable. <i>Zamora v. Clayborn Contracting Grp.</i>, 28 Cal. 4th 249, 258 (2002). “In determining whether the attorney’s mistake or inadvertence is excusable, [courts] inquire as to whether a ‘reasonably prudent person under the same circumstances’ might have made the same error. <i>Id.</i> (citations omitted) (emphasis omitted). “Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not . . . excusable. <i>McClain v. Kissler</i>, 39 Cal. App. 5th 399, 414 (2019) (<i>quoting Zamora, supra</i>, 28 Cal. 4th, at 258). Here, Movant argues that discretionary relief is appropriate on the grounds that Movant’s failure to appear for IDC and oppose Plaintiff’s Motions is attributable to surprise and excusable neglect. ROA 215, p. 3. Movant claims that counsel was unable to appear as ordered due to unexpected fire-related traffic and road safety conditions on July 8, 2026. ROA 219, p. 6. Having considered Movant’s Declaration in Support of Movant’s Motion for Reconsideration (ROA 219), the Court finds that Movant is entitled to discretionary relief on the grounds that Movant’s failure to appear as ordered in opposition to Plaintiff’s Motion is attributable to surprise and excusable neglect. Accordingly, the Court issues the following Orders: Movant’s Motion for Reconsideration Pursuant to California Code of Civil Procedure Section 1008 is DENIED. Movant’s Motion for Reconsideration [read “Relief”] pursuant to California Code of Civil Procedure Section 473 is GRANTED. The Court’s July 8, 2026, Order (ROA 205) granting
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	plaintiff's Motions to Compel Further Responses to Requests for Production (ROA 146), Special Interrogatories (ROA 171), and Form Interrogatories (ROA 167), ordering Movant to provide further, verified, code compliant responses, and imposing monetary discovery sanctions upon Movant in the amount of \$6,000 is VACATED. Pursuant to the foregoing, the Defendants' Ex Parte is rendered MOOT. Plaintiff's Motions (ROAs, 146, 167, 171) are RESTORED and set for hearing on November 10, 2026, at 1:30 p.m. in this Department for calendaring purposes only. Parties are ORDERED to appear for an Informal Discovery Conference on November 10, 2026, at 1:30 p.m. in this Department. An updated Joint Letter Brief no longer than four pages total, single-spaced, shall be filed no later than five (5) court days prior to the Informal Discovery Conference. The updated Joint Letter Brief shall be submitted in letter format, single-spaced, with no less than 11-point font, <i>i.e.</i>, not in pleading form. In the updated Joint Letter Brief, counsel must attest that counsel met and conferred in person, by phone, or by video conference, and then concisely summarize all issues that counsel were unable to resolve. Personal appearance is mandatory. Clerk shall give notice.
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